

24SMCV2913 24SMCV2913

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Case Number: 24SMCV2913 Hearing Date: July 16, 2026 Dept: M

CASE NAME: Barba, v. Krieger

CASE NO.: 24SMCV2913

MOTION: Motion

for Terminating Sanctions

HEARING DATE: 7/16/2026

Legal

Standard

If a party fails to obey a court order compelling it to provide a discovery response, “the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction . . . In lieu of or in addition to this sanction, the court may impose a monetary sanction” (CCP §§ 2030.290(c), 2030.300(e), 2031.300(c), 2031.320(c).) Misuse of the discovery process, which includes disobeying a court order to provide discovery, is conduct subject to sanctions. (CCP § 2023.010(g).) Possible sanctions are:

(a) [A] monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct....

(b) [A]n issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely

affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.

(c) [A]n evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.

(d) [A] terminating sanction by one of the following orders:

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any part of the action, of that party.

(4) An order rendering a judgment by default against that party.

(e) [A] contempt sanction by an order treating the misuse of the discovery process as a contempt of court.

(CCP § 2023.030.)

The party seeking to impose sanctions need only show the failure to obey earlier discovery orders. (*Puritan Ins. Co. v. Superior Court* (1985) 171 Cal.App.3d 877, 884 [interpreting former statute dealing with “refusal” to comply].) However, numerous cases hold that severe sanctions (i.e., terminating or evidentiary sanctions) for failure to comply with a court order are allowed only where the failure was willful. (*R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495; *Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1545; *Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1327.) The burden of proof then shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for his or her conduct. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.)

Analysis

Defendant Estate of Michael Krieger

moves for terminating sanctions, specifically an order dismissing Plaintiff Antonio Barba's action for her alleged unreasonable and unjustified refusal to obey her discovery obligations and the Court's discovery orders.

Defendant demonstrates that

Plaintiff willfully disobeyed this Court's discovery order. On February 11, 2026, the Court ordered Plaintiff to provide verified responses to Defendant's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, without objections and to pay monetary sanctions of \$1,496.00. Despite notice of this order, Plaintiff has not provided responses to the subject discovery requests. Therefore, Plaintiff has willfully failed to comply with the February 11, 2026, discovery order. Since Plaintiff has failed to pay the monetary sanctions as ordered, lesser sanctions would not be effective to compel Plaintiff's compliance and more severe sanctions are warranted.

The Court is therefore inclined to

issue the requested terminating sanctions. Before issuing that sanction, however, the Court will afford Plaintiff one final opportunity to obey the February 11, 2026, discovery order. Plaintiff must file proof of service of substantially code-compliant responses, without objection, to the subject discovery requests on or by July 27, 2026. If Plaintiff fails to do so, the Court will impose the terminating sanctions as requested and dismiss Plaintiff's action.